

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC
HOLDINGS, LLC, d/b/a
COLONIAL MOBILE MANOR,
Plaintiff,

Case No.: 2017-CC-3814
Division: 4

vs.

ROSARIO ALANIZ and
ANY UNKNOWN TENANT(s),
Defendants.

MOTION FOR POSSESSION

COMES NOW, the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, by and through the undersigned counsel and moves this Court for an Order for Possession of the Premises of Defendants in the above styled cause and states:

1. Plaintiff is a limited liability company owning and operating a mobile home park located in Manatee County, Florida, and doing business under the name Colonial Mobile Manor at all times relevant.

2. Defendant, ROSARIO ALANIZ, and any unknown tenants are in possession of the mobile home located at 900 9th Avenue East, Lot 42, Palmetto, Manatee County, Florida, 34221.

3. Defendants have claimed affirmative defenses to Plaintiff's complaint for eviction and other relief pursuant to Fla. Stat. §723.061.

4. At a hearing on November 29, 2017, this Court ordered that the Defendants had until December 8, 2017 to pay the sum of \$1968.00 into the registry of the court to enable it to present its

affirmative defenses pursuant to Fla. Stat. §723.063.

5. That time has elapsed, and the Defendants have not paid any funds into the registry of the Court.

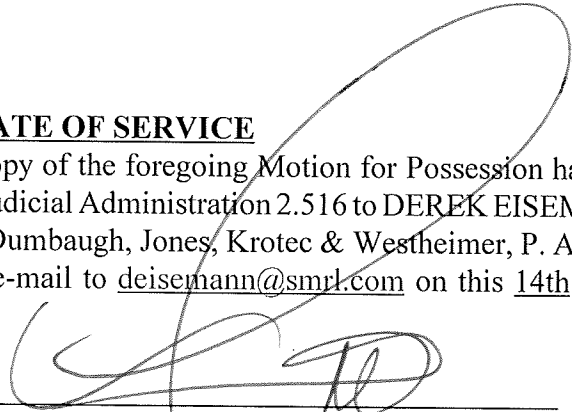
6. Plaintiff is entitled to an immediate default against the Defendants, and a writ of possession for the premises, pursuant to Fla. Stat. 723.062, to be executed ten days after the granting of the Writ of Possession.

7. Counsel for the Plaintiff has notified counsel for the Defendant of said default and served a copy of this motion, Judgment for Possession and Writ of Possession.

WHEREFORE, Plaintiff requests this Honorable Court to enter an order for a default judgment against the Defendants and a Writ of Possession in favor of Plaintiff for the premises known as Lot 42, 900 9th Avenue East, Palmetto, FL 34221 and such other and further relief as the Court may deem proper.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Possession has been furnished in accordance with Florida Rule of Judicial Administration 2.516 to DEREK EISEMANN, ESQUIRE, Sypret, Meshad, Resnick, Lieb, Dumbaugh, Jones, Krotec & Westheimer, P. A., 1900 Ringling Blvd., Sarasota, Florida 34236 by e-mail to deisemann@smrl.com on this 14th day of December, 2017.



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